

HOUSE No. 195

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to state assistance for funeral expenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>
<i>James Dolan</i>	<i>Chelmsford</i>	<i>1/17/2025</i>

HOUSE No. 195

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 195) of James Arciero and James Dolan relative to state assistance for funeral expenses. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to state assistance for funeral expenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1 Section 9 of chapter 117A of the General Laws, as appearing in the
2 2016 Official Edition, is hereby amended by striking out, in lines 10 and 11, the words "and final
3 disposition does not exceed \$3,500" and inserting in place thereof the following words:-
4 establishment excluding non-funeral establishment charges (cash advances) does not exceed
5 \$7,000.

6 SECTION 2 Section 9 of chapter 117A of the General Laws, as appearing in the
7 2016 Official Edition, is hereby amended by striking out the second sentence and inserting in
8 place thereof the following sentence:-

9 The commonwealth may recover this expense from any legally liable family members in
10 the manner provided in this chapter, and if such family members do not pay this expense, the
11 commonwealth shall pay an amount not exceeding \$2,000 to the funeral establishment if the total
12 expense of the funeral and final disposition does not exceed \$7,000, excluding cash advance

items for services not directly provided by the funeral establishment and not included on the general price list.

SECTION 3. Chapter 117A of the General Laws is hereby amended inserting after section 10 the following section:-

Section 11. The Department of Transitional Assistance shall promulgate regulations applicable to the payment of funeral and final disposition expenses as pursuant to section 9 of chapter 117A, section 2 of chapter 118, and section 7 of chapter 118A to exclude cash advance items for services not directly provided by the funeral establishment and not included on the general price list from the calculation of the total expense of said funeral and final disposition.

Funeral establishments shall include a general price list for services offered on their website in order to receive full payment or reimbursement from agencies and offices of the Commonwealth including, but not limited to the department of transitional assistance.

SECTION 4. The third paragraph of Section 2 of chapter 118 of the General Laws is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:-

The department may pay a sum not exceeding \$2,000 toward the funeral and final disposition of a recipient to the funeral establishment if there are insufficient resources to pay for the cost of such funeral and final disposition and if the total expense of the funeral and final disposition does not exceed \$7,000, excluding cash advance items for services not directly provided by the funeral establishment and not included on the general price list.

33 SECTION 5. Section 7 of chapter 118A of the General Laws is hereby amended by
34 striking the third sentence and inserting in place thereof the following sentence:-

35 The department may pay a sum not exceeding \$2,000 toward the funeral and final
36 disposition of a recipient to a funeral establishment if there are insufficient resources to pay for
37 the cost of such funeral and final disposition and if the total expense of the funeral and final
38 disposition does not exceed \$7,000, excluding cash advance items for services not directly
39 provided by the funeral establishment and not included on the general price list.